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Electrical Equipment (Safety) Regulations 2016

Guidance on the regulations as they apply to equipment being supplied in or into Great Britain.

October 2026

1. Introduction

This Guide is for businesses placing electrical equipment products on the market in Great Britain (“GB”) (GB comprises England, Scotland and Wales).

Read guidance on the regulations in Northern Ireland (“NI”).

This Guide is designed to help you comply with the Electrical Equipment (Safety) Regulations 2016, as they apply in GB (referred to in this document as the “2016 Regulations”). The 2016 Regulations set out the requirements that must be met before electrical equipment products can be placed on the GB market. The purpose of the legislation is to ensure safe products are placed on the GB market by requiring manufacturers to show how their products meet the principal elements of the safety objectives.

2. Legislative Background

The Electrical Equipment (Safety) Regulations 2016 implemented EU Directive (2014/35/EU) on electrical equipment designed for use within certain voltage limits (commonly called the Low Voltage Directive). The EU Withdrawal Act 2018 preserved the Regulations and enabled them to be amended so as to continue to function effectively after the UK left the EU. Accordingly, the Product Safety and Metrology etc. (Amendment etc.) (EU Exit) Regulations 2019 fixed any deficiencies that arose from the UK leaving the EU (such as references to EU institutions) and made specific provision for the GB market.

There is therefore one set of UK 2016 Regulations, but some of the provisions apply differently in NI under the terms of the Windsor Framework. References to the 2016 Regulations in this guide are references to those Regulations as they apply in GB.

The following legislative amendments apply:

The Product Safety and Metrology etc. (Amendment etc.) (EU Exit) Regulations 2019 were amended by the Product Safety and Metrology etc. (Amendment to Extent and Meaning of Market) (EU Exit) Regulations 2020 to

apply to GB only, and not to NI, in support of implementing The Protocol of Ireland and Northern Ireland (“TheNorthern Ireland Protocol”) and now the Windsor Framework.

The Product Safety and Metrology etc. (Amendment etc.) (EU Exit) Regulations 2019 were further amended to provide for importer labelling (for goods from the EEA), UKCA marking, to amend the definition of “authorised representative” and to introduce provisions for qualifying NI goods.

The Product Safety and Metrology (Amendment and Transitional Provisions) Regulations 2022 (SI 2022/1393) extend the provisions for UKCA labelling and importer labelling until 31 December 2027.

The Product Safety and Metrology etc. (Amendment) Regulations 2024 extend recognition of many goods that meet EU requirements (including the CE marking), indefinitely, and provide for a ‘Fast-Track’ UKCA scheme, whereby steps taken towards CE marking will count towards UKCA marking, while UK product safety regulations remain aligned with EU product safety law.

Read guidance on the regulations in NI market.

3. Scope

The Regulations apply to all electrical equipment that is designed or adapted for use between 50 and 1,000 volts (in the case of alternating current) and 75 and 1,500 volts (in the case of direct current). The Regulations cover domestic electrical equipment and equipment that is intended for use in the workplace.

The Regulations do not apply to electrical equipment listed in Regulation 3 (2) of the Regulations.

4. Obligations of manufacturers

A manufacturer is a person who manufactures electrical equipment, or has electrical equipment designed or manufactured, and markets that equipment under their name or trademark.

The obligations of manufacturers of electrical equipment include:

1) Before placing electrical equipment on the GB market, the manufacturer must:

a) design and manufacture it in accordance with the principal elements of the safety objectives. These are set out in Schedule 1 to the Regulations

b) draw up technical documentation

c) decide which conformity assessment marking (UKCA, CE or CE + UKNI) (see section 8 (or section 9 for Qualifying NI Goods)) they intend the equipment to have when placed on the GB market

d) carry out a relevant conformity assessment procedure

e) draw up a declaration of conformity (UK DoC if UKCA marked, EU DoC if CE marked)

f) affix the relevant conformity assessment marking (see section 8 (or section 9 for Qualifying NI Goods)) visibly, legibly and indelibly to the equipment. Where this is not possible or warranted because of the nature of the equipment, the UKCA marking must be affixed on the packaging and accompanying documents

Read more information on making use of recognition of EU requirements to place products on the GB market.

2) The manufacturer must:

a) keep technical documentation and the declaration of conformity for 10 years after the equipment has been placed on the GB market and make them available for inspection to the market surveillance authority (MSA).

b) label the equipment with their name, registered trade name or registered trade mark, a postal address, and the type batch or serial number (or other identification). Where it is not possible to indicate this on the equipment, the manufacturer must ensure the information is indicated on the packaging or in a document accompanying the equipment.

c) ensure that the equipment is accompanied by instructions which are clear, legible and in easily understandable English.

d) ensure that procedures are in place for series production to remain in conformity with Part 2 of the 2016 Regulations. In doing so, they must take account of any changes in electrical equipment design or characteristics, and any change in a harmonised standard or in another technical specification by reference to which the Declaration of Conformity was drawn up.

e) carry out, when appropriate with regard to any risk posed to end-users, sample testing of products they have placed on the GB market, investigate any complaints that the products are not in conformity with the 2016 Regulations, and keep distributors informed of any actions taken as a result. The manufacturer must also keep a register of these complaints, of products found not to be in conformity, and of product recalls.

f) take action where they have reason to believe that the electrical equipment they have placed on the GB market is not in conformity with the legal requirements of the 2016 Regulations by bringing the equipment into conformity, withdrawing the equipment or recalling the equipment. Where the equipment presents a risk, the manufacturer must immediately inform the MSA, giving details of how the equipment is not in conformity and any corrective measures taken. Read more information on how to notify the MSA.

g) cooperate with and provide information to enforcing authorities, such as local trading standards authorities, following any reasoned requests within 10 years of placing the equipment on the market.

Manufacturers wishing to place goods on the NI market should follow the Regulation as it applies to NI. Qualifying NI goods can be placed on the GB market without any additional approvals, although additional information as to the UK based importer may be required, if the goods have an importer based in the EU/EEA. See further detail in section 9 on Qualifying NI Goods.

5. Obligations of authorised representatives

Manufacturers are able by written mandate to appoint authorised representatives to perform certain tasks on their behalf.

Mandated authorised representatives for the GB market can be based in GB or NI but not outside the UK. A manufacturer placing electrical equipment on the GB market can only mandate an authorised representative established in the UK.

No GB-based authorised representatives are recognised under EU law to carry out tasks on the manufacturer’s behalf for equipment being placed on the EU market. GB-based authorised representatives cannot carry out tasks on the manufacturer’s behalf for products being placed on the NI or EEA markets. A GB manufacturer selling equipment to the EEA or into NI, who wishes to appoint an authorised representative to carry out tasks for them in respect of that equipment, must appoint an authorised representative based in NI or the EEA.

An authorised representative must comply with the duties imposed on the manufacturer, in particular, regulation 7 (retention of technical documentation) and regulation 13 (provision of information and cooperation), as well as perform other tasks which the mandate appoints them to perform.

The manufacturer remains responsible for the proper performance of any duties the authorised representative performs on their behalf.

Any references in the 2016 Regulations to the manufacturer are to be taken to include a reference to the authorised representative including in relation to penalties for failure to comply with those duties.

6. Obligations of importers

An importer is a person or business based in the UK who places equipment on the GB market from a country outside the UK, including electrical equipment that is supplied to NI businesses from the EEA and then placed on the GB market. In this instance the NI business will take on importer obligations for EEA-supplied goods that are placed on the GB market (see also section 9 on Qualifying NI Goods).

Importers must check that manufacturers have carried out the right conformity assessment procedures and include their (the importer’s) name, registered trade name or mark and a postal address on the equipment or, where this is not possible, on its packaging or in accompanying documentation.

Until 31 December 2027, the UK is allowing UK businesses who import equipment from the EEA or Switzerland into Great Britain to put their details on the packaging or in accompanying documentation as an alternative to indicating them on the equipment itself (even if it is otherwise possible to indicate it to the electrical equipment itself). This applies to goods that are not qualifying NI goods. For further detail on qualifying NI goods, please see section 9 on Qualifying NI Goods.

Can you be contacted easily if there is a problem?

A key principle underpinning product safety, for the benefit of consumers and regulators, is traceability of a product back to its source.

If you are importing electrical equipment from an EEA state or Switzerland and placing it on the GB market, you are temporarily permitted until 31 December 2027 to put your name, registered trade name or registered trade mark and a postal address on the equipment's packaging or in a document accompanying the equipment, instead of on the equipment itself. Usually, this is only permitted where it is not possible to provide the specified information on the equipment itself. But this additional temporary easement is permitted until 31 December 2027.

We understand that it may be difficult to provide your details on documentation accompanying each and every individual product. You may therefore use an alternative method where, for example, your contact information is on a document accompanying a batch of products. This document would then follow each batch of products through the distribution chain. Your contact details must follow each product through the distribution chain, but not necessarily by one document per product. Ultimately, the end user, each distributor (and a regulator) must be able to access the information.

Methods which enable traceability of the product after the initial batch has been broken up could include:

The importer address is present in shipping documents.

The importer address is present on the invoice to the GB customer.

The importer address is present on the label that is on the outer packaging ("shipper") in which a number of finished goods is packed (normally customers will receive shippers unless the order is very small so that the shipper has to be opened and split).

The importer address is included on the EU Declaration of Conformity and/or UK Declaration of Conformity (whichever is relevant for the product in question).

You should work with your distributors to ensure physical documentation does accompany batches of product as far as possible, and in all cases that there are measures in place to ensure end users are able to identify the UK importer.

Alongside that, but not as an alternative, you can use your company website to provide more information, access to product details and contact points for retailers, consumers and enforcement bodies.

These options are for a time limited period only and may not be used after 31 December 2027. You are encouraged to put in place measures to ensure that individual items do carry the importer's address where required ahead of this date.

The EU does not have any such transitional provision. In the absence of this, equipment being sold from GB to NI or the EU must be labelled with the NI or EU-based importer's address.

Read guidance on the regulations in Northern Ireland.

The obligations of importers in the UK include:

1) Before placing electrical equipment on the GB market, the importer must ensure that:

a) it is in conformity with the principal elements of the safety objectives and that the obligations in the 2016 Regulations have been met. If the electrical equipment presents a risk, the importer must inform the manufacturer and the MSA of that risk

b) the relevant conformity assessment has been carried out by the manufacturer

c) the manufacturer has drawn up the technical documentation

d) the manufacturer has affixed the relevant conformity assessment marking (see section 8 (or section 9 for Qualifying NI Goods)), to the equipment

2) The importer must:

a) keep a copy of the declaration of conformity and technical documentation for a period of 10 years after the equipment has been placed on the GB market.

b) provide their name, registered trade name or registered trade mark and a postal address at which they can be contacted on the electrical equipment or, where it is not possible to indicate this on the equipment, or where the importer has imported the equipment from an EEA state or Switzerland and places it on the GB market before 31 December 2027, on its packaging or in an accompanying document.

c) ensure that equipment is accompanied by instructions which are in easily understandable English.

d) carry out, when appropriate with regard to any risk posed to consumers, sample testing of equipment they have placed on the GB market and investigate complaints about electrical equipment that is not in conformity with the legal requirements of the 2016 Regulations and keep a register of those complaints.

e) take action where they have reason to believe that the equipment they have placed on the GB market is not in conformity with the 2016 Regulations, by bringing the equipment into conformity, withdrawing the equipment or recalling the equipment. Where the equipment presents a risk, the importer must immediately inform the MSA, giving details of how the equipment is not in conformity and any corrective measures taken. Read more information on how to notify the MSA.

f) ensure that while electrical equipment is under their responsibility, its storage and transport conditions do not jeopardise its conformity with the essential health and safety requirements.

g) cooperate with and provide information to enforcing authorities following any requests.

Qualifying NI goods complying with the legislation as it applies in NI, including affixing the CE marking, may also be placed on the GB market. See further detail in section 9 on Qualifying NI Goods.

7. Obligations of distributors

UK businesses that were distributors of electrical equipment within the EU single market should now consider whether they are importers from the EU single market and therefore what additional responsibilities they may have – see section 6 above. The same applies to distributors of goods from the EEA and Switzerland.

A distributor is any person, other than the manufacturer or importer, who makes electrical equipment available on the GB market.

The distributor must:

1) act with due care, when making electrical equipment available on the GB market, to ensure that it is in conformity with the principal elements of the safety objectives and that the obligations in the 2016 Regulations have been met.

2) verify, before making equipment available on the GB market, that:

a) the equipment bears the relevant conformity assessment marking (see section 8 (or section 9 for Qualifying NI Goods))

b) the equipment is accompanied by the required instructions and safety information

c) the importer and manufacturer have complied with their obligations as to required labelling

3) not make the equipment available on the GB market, where the distributor considers that the equipment is not in conformity with the principal elements of the safety objectives, until it has been brought into conformity. The distributor must ensure the necessary corrective actions are taken to bring the equipment into conformity, withdraw the equipment or recall the equipment. Where the equipment presents a risk, the distributor must inform the MSA about the risk, giving details of how it is not in conformity and any corrective action taken. Read more information on how to notify the MSA.

4) cooperate with and provide information to enforcing authorities following any requests.

8. Conformity assessment and marking before placing equipment on the GB market

As set out in section 4 above, before placing equipment on the GB market, the manufacturer must:

a) design and manufacture the equipment in accordance with the essential safety requirements

b) determine the conformity procedure that applies, carry out the relevant conformity assessment procedure, and draw up the relevant technical documentation

The product should then be marked with the applicable conformity assessment marking, provided it meets the essential requirements, and the relevant conformity assessment procedure has been carried out.

What conformity assessment marking should the product have and when?

The Product Safety and Metrology etc. (Amendment) Regulations 2024 extend recognition of CE marking indefinitely in GB. This allows businesses to use either CE or UKCA markings when placing goods on the GB market.

If GB based businesses wish to place products on the EEA market, they will continue to require a CE marking before the product is placed on the EEA market, including NI.

| Placing on the market in GB | Conditions to be met | Timeframe

| Can be CE or UKCA marked | If the product meets all the essential safety requirements for the GB market | Since 31/12/20

| Placing on the market in NI and / or EEA | Conditions to be met | Timeframe

| Must be CE marked | If the product meets all the essential safety requirements for the EEA market | Since 31/12/20

Can a product be dual marked CE and UKCA?

Yes, where it meets the essential safety requirements for both markets.

Can a CE marked product already on the market, subsequently be UKCA marked?

A product already on the market, marked with a CE marking, cannot subsequently be UKCA marked, unless it meets all the essential requirements for the GB market.

Any queries about CE marking or UKCA marking policy should be directed to Goods.Regulation@businessandtrade.gov.uk.

Where do I affix the conformity assessment marking?

The conformity assessment marking should be affixed visibly, legibly and indelibly to the equipment. Where it is not possible or not warranted on account of the nature of the equipment to affix the conformity assessment marking directly on the equipment (or its data plate), then it can be affixed to the packaging and accompanying documents.

Until 31 December 2027, the UKCA marking may be affixed to a label affixed to the equipment or a document accompanying the equipment, rather than being affixed to the equipment itself (even where it is otherwise possible to affix it to the equipment itself).

Placing on the market

A fully manufactured good is ‘placed on the market’ when there is a written or verbal agreement (or offer of an agreement) to transfer ownership or possession or other rights in the product. This does not require physical transfer of the good.

You can usually provide proof of placing on the market on the basis of any relevant document ordinarily used in business transactions, including:

contracts of sale concerning goods which have already been manufactured and meet the legal requirements

invoices

documents concerning the shipping of goods for distribution

Products imported for further manufacture and components

When products are imported into GB for further manufacture or processing, they are not considered placed on the market. Only fully manufactured products can be considered placed on the market. Under these circumstances, the GB manufacturer of the finished product has the sole and ultimate responsibility for ensuring it is compliant before they place it on the GB market.

A finished product must be compliant with all applicable legislation when placed on the GB market. Components may be placed on the market separately and can constitute a fully manufactured product in its own right. This

may include a requirement for the components of the product to be individually conformity assessed andmarked. However, for many products, a single marking covering the overall product is sufficient.

Spares

Products which are repaired, refurbished or exchanged without changing their original performance, purpose, or type, are not considered ‘new’ and therefore do not need to be recertified and remarked.

This includes if the product is temporarily exported for repair (as the product is not being placed on the GB market for the first time when re-imported).

Repair, replacement and maintenance operations are often carried out using other products which are spare parts. Spare parts are considered to have been placed on the market at the time at which the original product or system they are ultimately intended to repair, replace or maintain was placed on the market.

This means that spare parts can comply with the same conformity assessment requirements that were in place at the time the original product or system they are ultimately intended to repair, replace or maintain was placed on the market.

The definition of a spare part will vary depending on the commercial context, but it is broadly determined by a product’s ultimate intended usage. Whether a product is ultimately intended to be used as a spare part should be evidenced by any document demonstrating this intended use, which should be produced when requested by MSAs.

If the product has been subject to important changes, substantially changing its original performance, purpose, or type, it will be considered as a ‘new’ product. Therefore, the modified product must comply with the relevant legislative requirements at the time the product is first placed on the market or put into service.

9. Qualifying Northern Ireland Goods

The Government committed to providing unfettered access for qualifying NI goods to the rest of the UK market after 1 January 2021. Products that can be placed on the market in NI in accordance with the legislation, as it applies to NI, can be sold in the rest of the UK without any additional approvals.

This means that electrical equipment that is a qualifying NI good can be sold in the rest of the UK if the CE marking is currently applied to the good on the basis of self-declaration.

This will be the case even if there are changes between the EU rules that apply in NI under the terms of the Windsor Framework and the GB rules.

Read guidance on UKNI marking.

NI businesses that are importing products from the EEA and placing them on the GB market must ensure that the relevant conformity assessment procedure has been carried out, that the technical documentation has been drawn up and that the equipment bears the CE marking. They will also have to comply with the importer labelling duties (see section 6 on obligations of importers).

Read guidance on qualifying NI goods.

10. Enforcement and penalties

In GB, local trading standards authorities have a duty to enforce the 2016 Regulations in relation to consumer goods.

For electrical equipment intended for workplace use, the Health and Safety Executive (HSE) has a duty to enforce the 2016 Regulations in GB.

The Office of Nuclear Regulation is responsible for enforcing the 2016 Regulations in respect of the equipment in nuclear sites.

In addition, the Secretary of State, or a person appointed to act on their behalf, has power to enforce the 2016 Regulations and RAMS (Regulation (EC 765/2008) which sets out requirements for market surveillance of products) as amended by The Product Safety and Metrology etc. (Amendment etc.) (EU Exit) Regulations 2019.

The 2016 Regulations provide powers to MSAs to take action against economic operators for products that present a risk or are not in conformity with the 2016 Regulations, as set out in regulations 44 to 49. Economic operators are also required to co-operate with the enforcement authority and on request, must provide

information and take action as appropriate.

The GB MSA (HSE, local trading standards authorities, ONR) will take all appropriate measures to withdraw from the market or to prohibit or restrict the supply of products which may endanger the health and safety of persons, property or the environment.

Regulators' Code

Local authorities, the HSE and ORR must continue to have regard to the Regulators' Code when developing the policies and operational procedures that guide their regulatory activities in this area. They should carry out their activities in a way that supports those they regulate to comply and grow, including choosing proportionate approaches that reflect risk.

In responding to non-compliance that they identify, regulators should clearly explain what the non-compliant item or activity is, the advice being given, actions required, or decisions taken, and the reasons for these. Unless immediate action is needed to prevent a serious breach, regulators should provide an opportunity for dialogue in relation to the advice, requirements or decisions, with a view to ensuring that they are acting in a way that is proportionate and consistent. The Secretary of State takes account of the provisions of both the Regulators' Code and the Growth Duty in exercising their regulatory functions.

Read the Regulator's Code.

Penalties

A person committing an offence under the 2016 Regulations is liable to a penalty. Penalties can include:

a fine or prison sentence of up to three months or to both on summary conviction, or

a fine or prison sentence of up to two years or both on conviction on indictment

While it is a matter for the enforcement authority to decide whether prosecution is appropriate in each case, should a prosecution take place, it is at the discretion of the court to decide the penalties imposed on the offender.

11. Glossary

Authorised Representative – A person appointed in writing by a manufacturer to perform specific tasks for the manufacturer. Authorised representatives for the GB market must be based in the UK. Manufacturers remain ultimately responsible for ensuring these tasks are carried out properly.

CE marking – The conformity assessment marking used by the European Union. Certain goods (including electrical equipment) can be placed on the GB market bearing the CE marking.

Declaration of conformity – A document prepared by the manufacturer that declares that the product is in conformity with the relevant statutory provisions applicable to the specific product. It must detail the following: the specific electrical equipment to which the declaration is referring and the name and address of the manufacturer and, where applicable, their authorised representative. This must be kept by the manufacturer for a period of ten years from the date on which the electrical equipment was placed on the GB market. This declaration must be made available to the enforcing authority upon request.

Distributor – Any person in the GB supply chain, other than the manufacturer or the importer, who makes electrical equipment available on the GB market.

Enforcing Authority – In GB, for equipment in the use in the workplace, this is the Health and Safety Executive. For products for consumer use this is local trading standards authorities. For nuclear sites in GB, the Office for Nuclear Regulation is the enforcing authority.

Importer – A person established in the UK who places electrical equipment from a country outside of the UK on the GB market. This includes a person based in NI who has been supplied with the product from an EEA country, who would, under NI law, be a distributor. A person, who before 1 January 2021 (under EU Rules) distributed electrical equipment within the EU (including the UK, and including Switzerland), is now an importer if they are bringing such equipment into GB from another country (including EU Member States, the EEA or Switzerland).

Manufacturer – A person who manufactures electrical equipment, or has electrical equipment designed or manufactured, and markets that equipment under their name or trademark.

UKCA marking – The UKCA (UK Conformity Assessed) marking is the UK conformity marking used for certain goods (including electrical equipment) being placed on the GB market, in place of the CE marking which is the conformity marking used in NI and the European Union.